

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

August 08, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne (via Zoom), Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda Upon request by Dr. Aldrich and pursuant to support received by Mr. White and Mr. Johnson, item #16, was removed from the Consent Agenda. Upon request by Mr. White and pursuant to support received by Mr. Esquibel and Mr. Johnson, items #25(f), #25(g) and #25(h) were removed from the Consent Agenda. President Roybal moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. [Clerk’s note: Mr. Cook arrived during discussion prior to vote of Consent Agenda items]

[CA] Minutes from Regular Meeting of the Governing Body on July 25, 2022. Motion (per Consent Agenda) carried.

ORDINANCE – 3<sup>rd</sup> READING – Amending various sections of Chapter 13.12, Sewer System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming to allow for exceptions to sewage disposal requirements. Reporting for the Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Mr. White. Mr. Segrave moved to postpone until August 22, 2022, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2<sup>nd</sup> READING – Amending Ordinance No. 4411 Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023. Reporting for Finance Committee. Mr. White moved to approve on seconded reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2<sup>nd</sup> READING – Amending Chapter 1.16, Annexation and Infrastructure Improvements, of Title 1, General Provisions, of the Municipal Code of the City of Cheyenne, Wyoming, to repeal annexation provisions, amend definitions, and modify processes. Mr. Segrave moved to approve on second reading, seconded by President Roybal. Motion carried. Voting “yes” – all members of the governing body.

Comment was made by Laramie County Commissioner Gunner Malm.

ORDINANCE –1<sup>st</sup> READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to CB Community Business for land located south of and adjacent to W Lincolnway. – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1<sup>st</sup> READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for Pointe Plaza, 6<sup>th</sup> Filing, Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of Gardenia Dr. and Powderhouse Rd.). – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE – 1<sup>st</sup> READING – Amending and repealing portions of Chapter 2.20, Police Department, and repealing Chapter 2.24, Police Pension Board and Fund, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate obsolete provisions. – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

ORDINANCE – 1<sup>st</sup> READING – Amending Chapter 2.08, City Officers and Employees Generally, and amending and repealing portions of Chapter 2.28, Reserve Police Officers, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to update and revise the administration of the Reserve Police Officers Program and to extend administration over part-time Police Officers. – referred to Public Services Committee. (Sponsor Dr. Aldrich)

ORDINANCE –1<sup>st</sup> READING – Amending Section 10.52.010, Method of Parking, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, to authorize back-in angle parking as specified. – referred to Public Services Committee. (Sponsors – Mr. Johnson, Mr. Roybal, Mr. Segrave & Mr. White)

ORDINANCE –1<sup>st</sup> READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision governing contract approvals. – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in funding costs related to a reimbursable agreement for Precision Approach Path Indicator and Localizer Design and Construction. Motion (per Consent Agenda) carried. (#6257)

RESOLUTION – Authorizing the submission of an application to the State Loan and Investment Board for a grant through Water and Sewer ARPA Grant Program Funding on behalf

of the Governing Body for the City of Cheyenne for the purpose of providing critically needed flood control at East Dell Range Boulevard and Van Buren Avenue. Mr. White moved to adopt, seconded by Dr. Aldrich. Dr. Aldrich moved to amend by changing the amount from \$900,000.00 to \$1,900,000.00, seconded by Mr. White. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6258)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Fox Farm, a replat of a portion of Waterford Square and a portion of Waterford Square, 2<sup>nd</sup> Filing, City of Cheyenne, Laramie County, Wyoming (located east of Morrie Avenue, north of Fox Farm Road). – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2022 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Designating the use of excess 1% Specific Purpose Sales and Use Taxes collected from the May 2, 2017 Special Election. – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the Board of Public Utilities’ application to the Wyoming State Loan and Investment Board for a grant from the Water & Sewer ARPA Grant Program for the Water Reclamation Facilities (WRF) Hydraulic Capacity Project (Project) in the amount of \$2,294,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. (BOPU Sewer Enterprise Fund & SLIB ARPA Water & Sewer Grant) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Supporting the Board of Public Utilities’ application to the Wyoming State Loan and Investment Board for a grant from the Water & Sewer ARPA Grant Program for the North City Zone Improvements Project (Project) in the amount of \$3,927,097.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. (Wyoming Water Development Committee Funding & SLIB ARPA Water & Sewer Grant) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District boundaries for the DDA/Visit Cheyenne “Halloween Pub Crawl” to be held on October 29, 2022. – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District boundaries for the DDA/Visit Cheyenne “Community Appreciation Day” to be held on September 24, 2022. - referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Expressing the support of the Governing Body for community efforts to remove racially restrictive real estate covenants. – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Mr. Roybal, Mr. Segrave &

Mr. White)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services (General Fund). Mr. White reported that the motion to approve failed in the Finance Committee, therefore, there is no recommendation. For the sake of discussion, Mr. White moved to approve, seconded by Dr. Aldrich. Dr. Aldrich moved to amend by substitute dated August 8, 2022, seconded by President Roybal. Dr. Aldrich moved to amend the substitute in paragraph 6 (b) by inserting “onsite” prior to the word “housing”. Motion was withdrawn by Dr. Aldrich. Dr. Aldrich moved to amend the substitute in paragraph 5 (c) by removing “may” and replacing with “shall”, seconded by Mr. Laybourn. Motion to amend the substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and President Roybal. Motion to amend by substitute as amended carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. White. Comments were made by the following members of the public: Britney Tenant and, Richard Mencer, Cheyenne Animal Shelter. (#7566)

[CA] Agreement between the City of Cheyenne, Civic Center, and I.A.T.S.E. Local 229 for production services (Civic Center Fund). Motion (per Consent Agenda) carried. (#7567)

[CA] Agreement between the City of Cheyenne and Plan One Architects for architectural services for the Cheyenne Solid Waste Transfer Station original building roof replacement (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,190.00). (#7568)

Professional Services Agreement between the City of Cheyenne and Patrick Engineering Inc., for the Inventory, Condition Assessment, and Data Migration of City Facility assets to Cartegraph OMS Project (American Rescue Plan Federal Recovery Funds). Mr. White moved to approve in an amount not to exceed \$524,234.00 seconded by Mr. Segrave. Mr. White moved to amend by substitute dated August 2, 2022, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body. Mr. White made a friendly amendment to correct the dollar amount from \$524,234.00 to \$175,000.00, seconded by Mr. Segrave. Main motion, as amended, carried. Voting “yes” – all members of the governing body. (#7569)

[CA] Professional Services Agreement between the City of Cheyenne and KLJ Engineering for the Environmental Permitting Services for the City of Cheyenne’s industrial facilities (Solid Waste Fund & 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$45,400.00). (#7570)

Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Community Recreation and Events softball and baseball fields (2019-2022 1% Sales Tax). Mr. White moved to approve in an amount not to exceed \$96,602.00, seconded by President Roybal. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following members of the public: Mr. Ridgeway. (#7571)

Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Street and Alley for compost operations (2019-2022 1% Sales Tax) Mr. White moved to approve in an amount not to exceed \$135,237.00, seconded by President Roybal. Motion was carried. Voting “yes” – all members of the governing body. (#7572)

Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for the Weed and Pest Division (2019-2022 1% Sales Tax). Mr. White moved to approve in an amount not to exceed \$15,457.00, seconded by President Roybal. Motion carried. Voting “yes” – all members of the governing body. (#7573)

Memorandum of Understanding (MOU) between the City of Cheyenne and Cal Kunkel of Cheyenne Fox Farm, LLC, to authorize filing of platting application(s) for City-owned lands for the purposes of vacating and replating Waterford Square Second Filing. (PUBLIC SERVICES COMMITTEE) Mr. Segrave reported this item was reviewed under other items for the agenda at the August 2, 2022 Public Services Committee, therefore, provisions of Title 2 of City code have been met. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn. (#7574)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT). (2021 Specific Purpose Option Tax Fund) - referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Laramie County, and the Cheyenne Airport Board regarding the transfer of 2021 6<sup>th</sup> Penny Funds. (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number 1 for the School Resource Officers (SRO) Program. (Revenue to City) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7427 between the City of Cheyenne and Russell+Mills Studios Inc., for the East Cheyenne Community Park Master Site Development Plan. (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-1-23 for a contract between the City of Cheyenne and Synergy Construction LLC for the Happy Jack Landfill Electrical Improvements Project. (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-18-22 for a contract between the City of Cheyenne and Johnson Sand & Gravel for the Landfill Tent Structure Demolition Project. (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Farrwest Environmental Supply, Inc. for a XploIR handheld gas identification system handheld FT-IR spectrometer. (2020 State Homeland Security Program (SHSP) Grant) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Los Aguacates Inc. d/b/a Tres Amigos Family Mexican Restaurant, 1802 Dell Range Blvd., Suite 2, Cheyenne, WY. Motion (per Consent Agenda) carried.

Request to expand seating area for consumption relating to City of Cheyenne Bar & Grill Liquor License held by Paris West Restaurant and Bar, located at 1719 Central Avenue, Cheyenne, WY. Mr. White moved to approve contingent upon City Engineering, Building, and Planning and Development requirements being met, seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body.

Public comment was made by Mr. Ridgeway on the Voucher Report as presented.

The following members of the governing body made comments under other business – Dr. Aldrich, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:01 p.m.

Submitted by,

Kristina F. Jones,  
City Clerk

This notice is available in alternative, accessible formats upon request.

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